

Court No. - 38

Case :- WRIT - C No. - 11030 of 2018

Petitioner :- Hariom

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Pradeep Saxena

Counsel for Respondent :- C.S.C.,Kapil Dev Singh Rathore

Hon'ble Ran Vijai Singh,J.

Hon'ble Shashi Kant,J.

We have heard Shri Pradeep Saxena, learned counsel for the petitioner, Shri Kapil Dev Singh Rathore, learned counsel for respondent - Electricity Corporation and learned standing counsel for the State-respondents.

Through this writ petition, the petitioner has made following prayers:

"A. Issue a writ order or direction in the nature of certiorari quashing the impugned notice dated 14.09.2017 passed by the respondent no. 3 (Annexure No. 1 to the writ petition), otherwise the petitioner shall suffer irreparable loss and injury.

B. Issue a writ order or direction in the nature of interim mandamus staying the effect and operation of the impugned order dated 14.09.2017 passed by the Madhyanchal Vidhut Vitran Nigam Limited, Harunnagla, District Bareilly (Respondent no. 3) and direct the respondent authorities to furnish correct bill of electricity dues in accordance with law so that the petitioner may deposit the amount, within reasonable time as fixed by this Hon'ble Court, during the pendency of the present writ petition before this Hon'ble Court, otherwise the petitioner shall suffer irreparable loss and injury."

Shri Rathore has raised a preliminary objection with regard to maintainability of the writ petition by submitting that the petitioner has an alternative remedy to approach Consumer Grievance Redressal Forum (in short, 'the Forum') and Ombudsman under code 7.10 of the Electricity Supply Code, 2005 (in short, 'the Code of 2005').

We find substance in the submission of Shri Rathore.

Without expressing any opinion on merits of the case, the writ petition is disposed of with the liberty to the petitioner to approach the Forum for redressal of his grievance. In case such approach is made, along with certified copy of the order of this Court, needful be done in accordance with law by passing a reasoned speaking order.

It is also observed that the petitioner is also at liberty to file an application for interim relief. In case such application is filed, that may be concluded to its logical ends within a period of three weeks from the date of its filing.

Order Date :- 30.3.2018

Amit Mishra